

Court No. - 3

Case :- WRIT - C No. - 4692 of 2024

Petitioner :- Sant Gulab Das Alias Gulab Chandra Pathak

Respondent :- State Of U.P. Thru. Prin. Energy Electricity Deptt. Lko. And Others

Counsel for Petitioner :- Divya Prakash

Counsel for Respondent :- C.S.C., Manish Jauhari

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Subhash Vidyarthi,J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing on behalf of the State Respondents and Sri Manish Jauhari, learned counsel appearing on behalf of the respondent nos.2, 5 and 6.

This petition has been filed with the following main prayer:-

"I) issue a writ, order or direction in the nature of Certiorari to quash the Electricity Bill/invoice No. 060801721 dated 21.09.2022 of Rs. 1306.26/- passed by the Opposite Party No. 5 and any other electricity bill upto till date for the electricity connection account, No.7596214000 in the name of petitioner without providing the physical connection (Contained as Annexure No. 1), in the interest of justice."

It is the case of the petitioner that although the petitioner had made an application for an electricity connection, but no electricity connection was provided to him, but Bill has been raised. The petitioner is aggrieved and, therefore, has approached this Court with the aforesaid prayer.

Sri Manish Jauhri, learned counsel for the respondent, on the basis of written instructions, says that electricity connection was given to the petitioner in 2022 itself and it is a billing dispute that the petitioner has raised, which can be looked into under Paragraph 6.5 of the Electricity Supply Code.

This petition is ***disposed of*** with a direction to the petitioner to approach the respondent No.5-

Executive Engineer, M.V.V.N.L., Vidyut Vitran Khand (Second), Sultanpur, by making an appropriate application completing all formalities within a period of two weeks. If the petitioner makes such an application completed in all respects, the respondent No.5 shall look into the dispute and decide the same, strictly in accordance with law, within a period of six weeks thereafter.

Order Date :- 25.5.2024

Rahul